

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUOE017631: NATALI GODINEZ ZUNIGA vs CROWN DODGE

08/26/2026 in Department 44

Motion for Approval of Private Attorney General Act

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion for Approval of Private Attorneys General Act Settlement Agreement

Tentative Ruling:

The Court will CONTINUE the Motion to **October 7, 2026 at 1:30 p.m.** Plaintiff’s August 19, 2026 supplemental brief substantially cures the 16 deficiencies identified in the Court’s July 1 order, including by providing a claim-by-claim exposure analysis, identifying the discovery and investigation supporting the settlement, clarifying the release, addressing attorney fees and costs, identifying a cy pres recipient, and stating that the parties know of no other litigation affected by the settlement.

However, approval should be continued briefly because: (1) Defendant has not submitted the financial documents expressly requested to support its claimed inability to pay more than \$235,000 or fund the settlement in less than 12 months; (2) the supplemental exposure analysis uses the former estimate of 7,000 pay periods despite a current estimate of 7,763, labels calculations using only “initial violation” penalty rates as “maximum” exposure, and does not separately address the additional penalty theories pleaded in Complaint ¶ 62(b)-(c); (3) the supplemental papers do not actually provide the requested average employee payment or payment per compensable pay period; (4) the parties changed the treatment of uncashed checks

to a cy pres distribution through the proposed order rather than by an executed amendment to the settlement agreement; and (5) the present proof of service does not establish that the August supplemental materials or Defendant's August 21 declaration were submitted to the LWDA as required by the July 1 order.

Plaintiffs counsel to give notice.